

ENVIRONMENTAL LAW

- ▶ The word *environment* is derived from an ancient French word *environner*
- ▶ meaning to encircle
- ▶ include the aggregate of natural, social and cultural conditions
- ▶ Geographically, *environment* can refer to a limited area or encompass the entire planet,
- ▶ Defining an Environment is not an easy task.
- ▶ because it is difficult both to identify and to restrict the scope of such an ambiguous term,
- ▶ **Caldwell remarks** 'it is a term that everyone understands and no one is able to define'

What is International Environmental Law?

- ▶ Is a convenient way to encompass the entire corpus of international law, public and private, relevant to environmental issues or problems
- ▶ It is not intended thereby to indicate the existence of some new discipline based exclusively on environmental perspectives and strategies
- ▶ traditional legal order of the environment is essentially a *laissez-faire* system
- ▶ and it has become necessary to develop a body of law more specifically aimed at the protection of the environment
- ▶ Some argue that there is no distinct body of international environmental law with its own sources
- ▶ does exist originates from the application of general rules and principles of classical or general international law and its sources.
- ▶ *international environmental law is nothing more, or less, than the application of international law to environmental problems*
- ▶ international environmental law is merely part of international law as a whole
- ▶ traditional legal order of the environment is essentially a *laissez-faire* system,

What is National Environmental Law?

- ▶ Art. 9 (4) of our constitution

Factors that Gave Rise to Environmental Law: National and International Perspective

- ◆ The existence of an extensive range of environmental problems
- ◆ **Second**, the question of the relationship between the protection of the environment and the need for economic development is another factor

1. atmospheric pollution
2. marine pollution
3. global warming and ozone depletion
4. the danger of nuclear and other extra-hazardous substances

Such problems have an international dimension in two obvious respects.

- ▶ Pollution generated from within a particular state often has a serious impact upon other countries.
- ▶ The fact that these environmental problems cannot be resolved by states acting individually. Accordingly, co-operation between the polluting and polluted state is necessitated.

- ➡ To determine from which country a particular form of environmental pollution has emanated is more complicated
- ➡ The correct balance between development and environmental protection is now one of the main challenges facing the international community

Historical Development of International Environment Law

- ➡ in about 80 AD the Senate of Rome passed legislation to protect the city's supply of clean water for drinking
- ➡ In the 14th century England prohibited both the burning of coal in London and the disposal of waste into waterways.
- ➡ Prior to the 20th century, there were few multilateral or bilateral international environmental agreements
- ➡ Beginning in the 1960s environmentalism became an important political and intellectual movement in the West

Historical Development of Environmental Law in Ethiopia

- ➡ The 1984 draught was believed that the draught was the result of agricultural degradation or environmental mismanagement.
- ➡ there were fragmented environmental management activities in Ethiopia
- ➡ like the establishment of Semen National Park, Awash National Park and other wildlife protections

- soil preservation methods and others.
- Usually the practice was Top down Approach rather than bottom up approach.
- The other reason for environmental issues other than the draught was international pressure from the international community like the Rio Conference in 1992(since Ethiopia was one of the participants of the conference
- **Art.92 of yhe FDRE**
- , Art. 44.
- EPE took 10 years to develop.
- It was approved by the Council of Ministers of the Federal Democratic Republic of Ethiopia on April 2, 1997
- Currently every region in Ethiopia has its own Conservation Strategy
- FDRE Environmental Policy, at 3.
- ¹ Ibid, at 3.

Levels of Environmental Law

- The bulk of environmental law is statutory
- encompassed in the enactments of legislative bodies—and regulatory
- Much environmental law also is embodied in the decisions of international, national, and local courts.
- Some of it is manifested in arbitrated decisions

The Role of International and National Laws in the Protection of the Environment

- A law is society's system for weighing different interests, goals, and values
- it provides mechanisms and procedures for negotiating the necessary rules and standards
- settling disputes, and supervising implementation and compliance with treaties and customary rules.
- regulating environmental problems
- setting common standards and objectives for prevention or mitigation of harm
- providing a flexible rule-making process
- reinstatement of or compensation for environmental damage

- But it is limited because not all-environmental damage is necessarily capable of reinstatement or has an economically assessable value.
- it benefits or keeps accountable individuals
- for making decisions when conflicting interests cannot be reconciled in other ways
- The role of the law in protecting the environment is not fundamentally different in both international and national law.

Does the Existing Environmental Law Adequately Protect the Environment?

- effectiveness of the law in protecting the environment is concerned, much depends on the criteria used
- Effectiveness has multiple meanings:
 1. It may mean solving the problem for which the regime was established
 2. achievement of goals set out in the constitutive instrument
 3. altering behavior pattern
 4. enhancing national and international compliance with rules and international agreements.
- Effectiveness of different regulatory and enforcement techniques are largely determined by the nature of the problem
- What works in one case may not work in others.

Foundations of Environmental Law

- Law emerges from the cultural traditions and moral and religious values of each society
- In the context of environmental protection, cultures, religions and legal systems throughout the world contain elements that respect and seek to conserve the natural bases of life

Religious Traditions

- environmental protection can be found in religious traditions
- The Jewish law provided for conservation of birds , protection of trees during wartime
- and regulated the disposal of human waste

- in muslim Man has been granted inheritance to manage and utilize the earth for his benefit, and for the fulfillment of his interests
- He therefore has to keep, maintain and preserve it honestly
- Islamic principles thus envisage the protection and the conservation of basic natural elements
- making protection, conservation and development of the environment and natural resources a mandatory religious duty of every Muslim

Traditional Communities

- According to the indigenous view, land should not be torn open and exploited–this is a violation of the Earth
- ILO Convention No.169 on Indigenous Peoples and Article 8 of the Convention on Biological Diversity contain provisions protecting the traditional lifestyles and knowledge of indigenous peoples
- Enforcing traditional laws and norms that guarantee or protect the land and resource rights of such communities has been an important means of ensuring environmental protection in some jurisdictions

The Sources and the Law Making Process of Environmental Law

The Sources of Environmental Law

- Governments protect the environment on the basis of their various constitutional and statutory powers
- National authorities may accept additional duties to protect the environment by entering into bilateral and multilateral treaties containing specific obligations
- Promulgation of regulations and permits by administrative authorities is another important source of environmental law
- Some constitutions also contain reference to environmental rights or duties,
- constitutional provisions and their interpretation and application is another potentially important source of environmental law
- Litigation enforces the laws and regulations by civil or criminal actions.
- statutory provisions may allow individuals to bring suit against an administrative body

Sources of National Law

- **Constitutional Law**

- **Environmental Legislation**
- **Administrative Regulations**
- **Industry Standards and Codes of Conduct**
-

Antiquities laws

Regulation of agricultural activities

Public health laws

Land use regulation and public trust doctrines

Mining and energy laws

Coastal zone management, fisheries and forestry law

Some environmental cases appear at first glance as consumer protection suits against the manufacturers or sellers of hazardous products

cases involve efforts to obtain information about environmental conditions

- These many topics related to environmental law are regulated by various sources of national law.

Constitutional Law

- constitutions now contain provisions establishing environmental rights, or set forth governmental duties to protect the environment and the state's natural resources
- references to constitutional environmental rights raise difficult questions of justifiability, remedies, and the scope and content of such rights
- The Supreme Court of India was one of the first courts to develop the concept of the right to a healthy environment as part of the right to life guaranteed by the constitution

Environmental Legislation

- Legislative texts often establish general environmental policy
- Broad frameworks of environmental statutes have been adopted in many different countries
- Promulgation of standards for various pollutants is often a critical component of the legal framework for environmental protection

Administrative Regulations

- In order to achieve environmental protection, many administrative agencies and officers have new powers to obtain information and a wide range of civil enforcement options from orders to injunctions

Industry Standards and Codes of Conduct

- A growing number of guidelines or codes of conduct have been developed within industry, including the World Industry Council for the Environment,
- the FAO International Code of Conduct on the Distribution and Use of Pesticides,

International Law

- is considered the supreme body of law by international tribunals
- and in international relations among states.
- international law is the most complete expression of unified law
- So a state may not invoke a provision of its national law to excuse its violation of international law.
- Within states, international law may be legally binding and applied by courts as a result of one or more means that are usually specified in the constitution.

Legal doctrine has developed two theories known as *monism* and *dualism*

- Monism posits a unified body of rules, automatically forms part of this body of rules and is hierarchically superior to other law
- Dualism sees separate legal orders and looks to each jurisdiction to determine the sources of law and their hierarchy.
- the theory of monism and dualism is most relevant to customary international law and even then in limited fashion
- Most common law countries consider customary international law to be part of the common law and automatically binding as national law
- some constitutions specify that ratified treaties are automatically the law of the land and must be applied by judges
- Some courts have adopted a rule of interpretation that avoids placing the state in breach of a treaty or rule of customary international law

The Law Making Process: National and International Perspective

The Law Making Process of Environmental Law in Ethiopia

- ➡ A very important point for assessing environmental law is a clear understanding of the law making process from which it derives
- ➡ Proclamation No 454/2005 which stipulates:
- ➡ there is national parliament which is endowed by the constitution of the country with the power to legislate laws
- ➡ Art. 51(5) :
- ➡ Art. 52 of the same constitution that talks about the Powers and Functions of States

The Law Making Process of International Environmental Law

- ➡ Concerning International Environmental Law there is no international legislature, comparable to the national parliament
- ➡ but there are generally accepted sources from which international law derives
- ➡ Much of international environmental law is the product of legislative process involving the interplay of international organizations, conferences, diplomacy, codification and progressive development, and international courts
- ➡ and a relatively subtle interplay of treaties, non-binding declarations or resolutions

Three features have helped to make this law making process both inclusive and relatively rapid

- ➡ **First,** international institutions, including the UN have played a leading role in setting law-making agendas
- ➡ **Secondly,** following the model of the 3rd UN conference on the law of the sea, the use of consensus negotiating procedures and package deal diplomacy has created a real potential for securing universality and general acceptance of negotiated texts.
- ➡ **The 1992 Rio Conference** on Environment and Development illustrate particularly well the importance of a process which is capable of securing universal, or near universal, participation and support.
- ➡ the negotiation of the conventions on Climate Change and Ozone depletion has played a role
- ➡ **Thirdly,** the use of frame work treaties, with regular meetings of the parties, has given the process, at least in its treaty form, a dynamic character, allowing successive protocols, annexes, and related agreements to be negotiated

- These treaties, together with the institutions they create, have become in effect regulatory regimes
- They provide a basis for further, progressive action to be taken as scientific knowledge
- it is the political process referred to above which represent a real vehicle for law making, even the Stockholm and Rio Declarations, the instruments adopted are not formally binding on states

Nature of Environmental Problems, and Damages

Nature of Environmental Problems

- ☐ To understand this it is important to understand the natural cycle of the environment.
- ☐ we need to grasp that within the environment there exists dynamic cyclic interrelationship between the living form and physical environment
- ☐ This dynamic cyclic relationship properly operates in a balanced state in an unpolluted natural environment;
- ☐ so that, to maintain the balance it is important to suppress the unwanted behavior of man
- ☐ within the environment there is dynamic interrelationship between the living form and physical environment
- ☐ These relationships can be expressed as a **natural cycle**
- ☐ This cycle mainly operates in a balanced state in an undisturbed natural environment
- ☐ **balanced operation of this natural cycle** is a fundamental condition to the existence and development of life on earth
- ☐ the environment, including the human competent, is complex and is not yet completely understood
- ☐ We are part of that system: our actions affect the system and we are in turn affected by it
- ☐ **The basis of the emphasis on human acts in environmental protection is, the fact that, we are part of the environment and simultaneously we human**

beings have a capacity and capability not only to improve but also to destroy and destruct nature

- ☐ For this reason, if we fail to safeguard the environment from being affected by our activities, there is a fear *for human survival*
- ☐ the cumulative effect of these environmental injuries would undoubtedly all living creatures on earth in jeopardy
- ☐ To save humanity, therefore, everyone should notice that we human beings are at the heart of the search for sustainable development as our very survival depends on a very narrow range of environmental condition

concept of sustainable development

- ☐ underlies the need to develop a holistic understanding of the relationship between the environment and the development process
- ☐ sustainable development is a means to an end for the realization of friendly environment.
- ☐ , sustainable development implies not merely limits on economic activity in the interests of preserving or protecting the environment
- ☐ but an approach to development which emphasizes the fundamental importance of equity within the economic system
- ☐ This equity is both intra-generational, in that it seeks **to redress the imbalance** in wealth and economic development between the developed and developing worlds
- ☐ That is by giving priority to the needs of the poor, and inter-generational, in seeking a fair allocation of costs and benefits across succeeding generations.
- ☐ development will only be ‘sustainable’ if it benefits the disadvantaged, without disadvantaging the needs of the future.
- ☐ the whole purpose of environmental protection boils down to mean suppressing the unwanted behavior and action of man, and fostering those that would contribute to the maintenance and enhancement of ecological balance to the benefit of the general public, and the continuity and profitability of development activities
- ☐ To this effect, therefore, human beings are now being called upon to save the future.

- ☐ The future, it is presumed, lies entirely in their hands
- ☐ diffused right of human beings to live in a clean and healthy environment

Pollution to Environment as International, Regional and National Concern

- ☐ *There is no single sense in which an environmental issue can be described as international, regional or national;*
- ☐ *rather it could be global, regional, trans-boundary, domestic, or a combination of all or any of these.*
- ☐ *the law governing these rather different contexts is likely itself to differ*

The Rationale for the Protection of the Environment

- ☐ **First**, industrial developments had not spawned/bring pollution and damage to the environment on a very large scale
- ☐ States still took a traditional approach to their international dealings:
- ☐ **Third**, public opinion was not yet sensitive to the potential dangers of industrial and military developments to a healthy environment

CHAPTER 2 BASIC PRINCIPLES OF ENVIRONMENTAL LAW

- + Normally principles are spelled out by courts
- + No legal order can regulate with specific rules any possible conduct of legal subjects
- + Gaps are bound to exist in the normative network of any community
- + general principles constitute both the backbone of the body of law governing international dealings and the potent cement that binds together the various and often disparate cogs and wheels of the normative framework of the community

At present, in the world community, two distinct classes of general principles may be relied upon.

- + First, there are general principles of international law, namely those principles which can be inferred or extracted by way of induction and generalization from conventional and customary rule of international law

- ✚ Second, there are principles that are peculiar to particular branches of international law (the law of the sea, humanitarian law, the law of state responsibility, etc.

The present ecological era began at the end of the 1960s, after post-World War II reconstruction led to unprecedented global economic development

- 🏠 International and national environmental law substantially increased in the two decades after Stockholm

CHAPTER 3 ENVIRONMENTAL RIGHTS

The Right to enviromental Information

- ▶ Access to environmental information is a prerequisite to effective public participation
- ▶ A growing number of international, constitutional and statutory provisions set forth rights that are relevant to and invoked for environmental protection.
- ▶ to provide transparency and democratic governance by allowing interested persons to have information about and input into decisions that affect their environment
- ▶ or redress when that environment is harmed
- ▶ so It is a prerequisite to effective public participation in decision-making and to monitoring governmental and private sector activities
- ▶ It also can assist enterprises in planning for and utilizing the best available techniques and technology.

Public participation

- ▶ is another right in the environmental arena.
- ▶ is emphasized throughout international and national environmental law.
- ▶ In most systems, public participation is provided for, is designed to be meaningful, and is usually legally enforceable
- ▶ most EIA laws have provision for public participation because this facilitates direct public input into decisions on issues of environment and development
- ▶ The right to public participation is also widely expressed in human rights instruments. Article 21 of the *Universal Declaration of Human Rights*
- ▶ is based on the right of those who may be affected to have a say in the determination of their environmental future

- ▶ In the EIA context, the public typically incorporates all stakeholders including communities, women, children, indigenous people, non-governmental organizations, other State and non-State institutions.
- ▶ Depending on the jurisdiction, this may include foreign citizens and residents.

The right to an effective remedy

- ▶ Is access to justice and redress
- ▶ access to justice and redress, can be found in both human rights law and in environmental law
- ▶ European Convention on Human Rights, Article 13 guarantees a remedy whenever there is a violation of the rights
- ▶ Principle 10 of the Rio Declaration provides that “effective access to judicial remedy
- ▶ It can be found in both human rights law and in environmental law
- ▶ The United Nations Covenant on Civil and Political Rights calls for states to provide a remedy whenever rights protected under national or international law have been violated
- ▶ note that the right to a remedy is not necessarily limited to nationals of a state
- ▶ Some international agreements contain obligations to grant any injured person a right of access to any administrative or judicial procedures equal to that of nationals or residents.
- ▶ Equal access to national remedies has been considered one way of implementing the polluter-pays-principle because it tends to expand the scope of polluter accountability.

the right to environmental quality

- ▶ Here we can safely say that, National provisions proclaiming a right to environmental quality are fairly prevalent at this juncture .
- ▶ because almost every constitution adopted or revised since 1970, either states the principle that an environment of a specified quality constitutes a human right or imposes environmental duties upon the state.
- ▶ At present, no global (international) human rights treaty proclaims a right to environmental quality, although the *Universal Declaration of Human Rights* and other human rights instruments contain a right to an adequate quality of life and a right to health

- ▶ On the regional level, the 1981 *African Charter on Human and Peoples Rights* was the first international human rights instrument to contain an explicit guarantee of environmental quality
- ▶ Subsequently, the *Protocol on Economic, Social and Cultural Rights to the American Convention on Human Rights* included the right of everyone to live in a healthy environment (Art. 11).

Chapter 4 COMMON LEGAL MECHANISMS OF ENVIRONMENTAL PROTECTION

Two primary, common regulatory systems aim to prevent environmental harm by anticipatory action

1. The first is a system that attempts to establish individualized pollution controls and mitigation measures through environmental impact assessment based on the character of the activity and environment surrounding the facility.
 2. The second system relies on a permit or licensing regime that requires adherence to per-established norms (quotas, bans on the use of certain substances)
- acceptance of these legal mechanisms have increased in recent years through the mutual influence of national and international environmental law.
 - Nowadays national and international laws establish standards for products and processes that impact the environment.
 - standards are prescriptive norms that govern products or processes or set limits on the amount of pollutants or emissions produced
 - Standards may be set for:
 1. production processes
 2. emission levels
 3. product characteristics and

4. ambient quality standards for a given environmental milieu.

- ➡ To realize clean and healthy environment, environmental laws frequently mandate government officials to authorize, certify or issue permits or licenses to activities or establishments or that poses threats to the environment or that use natural resources

the Prior informed consent (PIC)

- ➡ is a procedural mechanism utilized in advance of activities in order to avoid potential conflict
- ➡ and to reduce the risks of environmental or social harm
- ➡ Internationally, prior informed consent requires obtaining and disseminating the decisions of importing countries
- ➡ In national law, judicially enforceable PIC procedures may apply to foreign products seeking entry into the country or mediate access to a state's biological resources
- ➡ requires obtaining and disseminating the decisions of importing countries on whether they wish to receive shipments of restricted or banned products after they have been fully informed about the hazards posed by the products

Environmental impact assessment (EIA)

- ➡ is 'a procedure for evaluating the likely impact of a proposed activity on the environment
- ➡ The value of an effective EIA is that it provides an opportunity for public scrutiny and participation in decision-making
- ➡ it may introduce elements of independence and impartiality, and, ideally, it will facilitate better informed judgments when balancing environmental and development needs
- ➡ At an international level it alerts governments and international organizations to the likelihood of trans-boundary harm.
- ➡ EIA also contributes to the implementation of national policies on sustainable development and precautionary action
- ➡ Without the benefit of an EIA the duty to notify and consult other states in cases of trans-boundary risk will in many cases be meaningless
- ➡ when done properly EIA should help the governments to foresee and avoid international environmental disasters or harmful consequence

- Environmental impact assessment is so well established in national practice that it might be regarded as a general principle of law or even a requirement of customary law for states to conduct an EIA
- Not every proposed activity is subject to assessment, only those that may be or are likely to cause a stated level of harm to the environment
- The requirement to conduct EIA may be based upon:
 - ▶ Lists of categories of activities that by their nature are likely to have significant effects
 - ▶ Lists of areas that are of special importance or sensitivity (such as national parks)
 - ▶ Lists of categories of resources or environmental problems which are of special concern
 - ▶ An initial environmental evaluation of all activities, with a quick and informal assessment to determine whether the effects are likely to be significant
 - ▶ Defined and listed criteria, which make an impact “significant”

Many questions arise in establishing or judicially reviewing an environmental impact assessment procedure:

- ▶ What range of impacts must be discussed?
- ▶ What severity of impacts must be discussed?
- ▶ What degree of certainty is required?
- ▶ How should magnitude and probability of harm (risk) be evaluated?
- ▶
- The object of an EIA is to provide decision-makers with information about possible environmental effects

- ➡ It is fundamental to any regulatory system which seeks to prevent or minimize environmental harm, or to promote sustainable development.

Monitoring

- ➡ is a process whereby states 'observe, measure, evaluate and analyze, by recognized scientific methods, the risks or effects' of pollution or environmental harm
- ➡ Unlike EIA, monitoring is generally undertaken after the project has begun
- ➡ its purpose is to check initial EIA predictions and determine whether further measures are needed in order to abate or avoid pollution or environmental harm.
- ➡

land use controls

- ➡ play a major role in environmental law for both urban and rural areas, through zoning physical planning and the creating of protected areas
- ➡ zoning is expected to distribute activities harmful to the environment in order to limit a potential damage
- ➡ so it allows application of different legal rules from zone to zone for more effective protection
- ➡ so that, zoning would be expected to help the implementation of the concept of environmental justice by ensuring that the benefits and burdens of resource use are shared throughout society.
- ➡ On a national level, land use planning and zoning regulations are normally expressed in negative terms

1. Product and Process Standards

- ➡ Standards are prescriptive norms that govern products or processes or set limits on the amount of pollutants or emissions produced

Process Standards

- ➡ specify design requirements or operating procedures applicable to fixed installations such as factories or may designate permissible means and methods of activities like hunting or fishing

- Process standards frequently establish norms for an entire industry or class of operation to achieve comparable levels of pollution control.
- Process standards that apply to imported products sometimes pose particular problems as potential barriers to trade under the international trading regime set up by GATT and the WTO
- because the very principles of GATT and WTO calls for free trade and free service
- because in the international trading regime tariff and non-tariff barriers are considered as impediment to the realization of free trade and service

Product Standards

- are used for items that are created or manufactured for sale or distribution
- Such standards may regulate physical or chemical composition of items such as pharmaceuticals or detergents
- technical performance of products, such as maximum levels of pollutant or noise emissions from motor vehicles or specifications of required product components such as catalytic converters.
- To ensure fair economic competition, product standards usually are adopted for an entire industry

Labeling requirements

- are used to ensure that consumers are aware of the contents and the permissible uses of products
- aim to avoid accidental environmental harm through misuse, spills or improper disposal of the product.
- The “green” or “ecolabel” is a recent, increasingly popular incentive to environmental protection

2. Emission Standards

- specify the quantity or concentration of pollutants that can be emitted in discharges from a specific source
- As a general rule, emission standards apply to fixed installations, such as factories or homes; mobile sources of pollution are more often regulated by product standards

- ➡ Emission standards **establish obligations of result**, typically leaving the polluter the free choice of means to conform to the norm.
- ➡ Emission standards may also vary according to the number of polluters and the capacity of the sector
- ➡ Emission standards are the type of standards most commonly required by international agreements and are mandated by several important agreements
- ➡ Emission standards thus most often reflect a political decision about the **amount of pollution that is deemed acceptable**
- ➡ Emission standards are based on the assumption that:
 - ◆ Certain levels of some contaminants will not produce any undesirable effect
 - ◆ There is a finite capacity of each environment to accommodate substances without unacceptable consequences
 - ◆ The assimilative capacity can be quantified, apportioned to each actor and utilized

3. Ambient Quality Standards

- ✚ **fix the maximum allowable level of pollution in an environmental sector during normal periods**
- ✚ may set the level of mercury permissible in rivers, the level of sulfur dioxide in the air or noise level of airplanes in the proximity of residential areas.
- ✚ often vary according to the particular use made of the environmental resource.

permits or licenses

- ✚ To realize clean and healthy environment, environmental laws frequently mandate government officials to authorize, certify or issue permits or licenses to activities or establishments or that poses threats to the environment or that use natural resources.

Land Use Regulations and Property Rights

- ✚ zoning regulations or other land use limitations imposed to protect the environment amount to a taking or expropriation of property

That are illegal unless undertaken:

- For a public purpose;
- In a non-discriminatory manner;
- With a hearing that accords with due process; and
- With fair compensation.

✚ , laws and regulations to protect other species may conflict with uses of property

CHAPTER 5 THE LEGAL FRAMEWORK OF ENVIRONMENTAL PROCEEDING

✚ the Ethiopian House of People's Representatives has recently enacted **Environmental pollution control proclamation** with a liberalized standing.

✚ According to this proclamation, **any person can bring** legal action without the need to show any vested interest when actual or potential damage is done to the environment.

✚ On the basis of this liberalization a question arises in that whether or not it is tenable to argue that legal personality could be bestowed to public interest groups, to the future generation, and to the environment itself as a distinct legal entity

the legal personality to the environment as a separate legal entity

✚ When we analyse this ,different positions emanate from the fundamental distinctions that can be made in the **world view**

a. If the legal system follows **anthropocentric view**, it would consider human and nature as separate, and human beings placed in the center.

- ▶ This means it considers the environment instrumental to the interest of man and
- ▶ denies legal personality to the environment per se as a legal entity.

- b. a legal system that follows **ecocentric view** seeks conferring of legal personality to each distinct part of the environment to exercise their own right on their own behalf.

► Seeks a fundamental shift in consciousness from human domination of nature to a perception of human and non-human life as having equal intrinsic values.

► The Ethiopian legal system recognizes both anthropocentric and ecocentric views in different legal instruments.

► It could possibly be argued that bestowing legal personality to the environment as a separate legal entity is **corollary to the right of the people to live in a clean and healthy environment**. So, it is of paramount importance to bestow legal personality to the environment as a separate legal entity **to realize the interest of different stake holders in relation to the environment**.

In case of legal personality to the future generations

► The inherent idea behind this principle is that we need to impose certain limitations on the development and use of technology as well as on the interest and capacity of consumption of the present day generation.

► In **intergenerational equity** there are two elements

- 1) first is, preserving natural systems for future generations so that the human species can perpetuate itself at the same **quality of life** and standard of living as the present generation
- 2) The second is preserving area of national significance due to their aesthetic appeal, historic attributes, or ecological significance for the use and enjoyment of future generations

► it becomes fairly easy if we have a clear picture on what is intergenerational equity

► intergenerational equity could exist only when there is sustainable development

► that is, when the development in any form meets the needs of the present generation without compromising the ability of the future generation to meet their own needs.

- The implementation of this principle, therefore, lies in our capacity to form a collective bond of identity with the future generation and bestowing them legal personality to exercise their own legal rights their own behalf.
- the Ethiopian environmental policy and environmental laws give cognizance to intergenerational equity
- it is tenable to argue that there is a leeway to entertain the interest of future generations by bestowing them legal personality to have standing before a court of law on their own behalf.

Liberalization of Standing in Environmental Proceeding that Led to Public interest Litigation

- Under the traditional tort law, individual citizens have a right to sue only if their own personal interest is infringed
- For this very reason, no one has in principle, standing to sue for and claim damages if harm done to the environment per se is considered only as infringement of collective interest
- Hence, to enable alert citizens and public interest groups to initiate legal action when damage is done to the environment per se, it is important to award them a personal right to a clean and healthy environment
- an infringement of this right would entitle any individual to file a legal claim against the responsible party in order to protect his interest to live in a clean and healthy environment and may be even to seek monetary compensation for the damage
- The FDRE constitution, for instance, stipulates that all Ethiopians live in a clean and healthy environment , it does provide individuals with a personal right to a clean and healthy environment , It also brings the government and citizens together as having the duty to protect the environment
- to have Public Interest Litigation, with legal penetration, it is important to grant individuals a personal right to a clean and healthy environment
- the introduction of such a new fundamental personal right to a clean and healthy environment provides access to justice for citizens in cases where damage is caused to the environment per se.

- ➡ An advantage of the introduction of such personal right and duty would be that it will provide access to justice for citizens in cases where damage is caused [or threatened to be caused] to the environment in general
- ➡ Under the Ethiopian legal system, personal right to clean and healthy environment is recognized in the FDRE constitution
- ➡ so that, in Ethiopia, public interest action by alert citizens could certainly be manipulated in case when damage is done to the environment per se.
- ➡ Furthermore, the FDRE constitution under article 37 stipulates this issue
- ➡ By this provision the FDRE constitution provides for the right of access to justice which can be invoked by individuals and groups
- ➡ In respect to the right of access to justice through courts of law, it is clearly spelled out under the 1995 constitution, where it is specifically provided that every person has the right to bring justiciable matter to and to obtain a decision or judgment by, a court of law or any other competent body with judicial power
- ➡ the granting of personal right to a clean and healthy environment, and liberalization of standing, could also be taken as a vital ground in cases where the government is unwilling to claim damages for injury to the environment per se.

Citizen Standing in Cases of Environmental Authorities' Inaction or Abuse:

Judicial Review

- ➡ Where a concerned citizen [or voluntary organization] sues, not as a representative of others but in his or her own right as a member of the citizenry to whom a public duty is owned, it is termed as **citizen standing**
- ➡ the objective of environmental authorities is to formulate policies, strategies, laws and stakeholders, which foster social and economic development in a manner that enhances the welfare of humans and the safety of the environment
- ➡ Environmental Authorities, however, they could delay, miss deadlines, or simply refuse to use their enforcement powers and when faced with blatant violations
- ➡ In such cases, if environmental authority acting illegally causes a specific injury to a person or a specific group of persons, **a private action for redress would lie under the traditional doctrine of standing**

- ➡ however, if the injury arising be diffused, In such cases, the restrictive traditional doctrine precludes relief and renders the environmental authority's inaction or abuse immune from judicial scrutiny
- ➡ so every citizen challenge such environmental authorities inaction or abuse in the interest of the public, though the citizen has not yet sustained personal injury
- ➡ they may also challenge any relevant decision, including the one regarding the selection of the most appropriate restoration alternative if they can make a plausible case that the selected alternative is inappropriate
- ➡ The rule is that an application for judicial review in environmental proceeding must be brought promptly and in any event within sixty days from the date the decision was given or the deadline for decision has elapsed
- ➡ Because judicial review is usually aimed at stopping decisions before they are put into effect rather than when it is too late and the harm has already been caused
- ➡ When damage is done to the environment under the FDRE legal system, a number of persons¹ have legal standing, so that it is pertinent to scrutinize whether they could become joinder plaintiffs or not in the legal action
- ➡ In environmental proceeding the right to a clean and healthy environment is collective as well as personal right, and the right to bring legal action is without the need to show any vested interest

Citizen Standing to Challenge the Constitutionality of Environmental Laws

- ➡ as per Article 83 of the same, all constitutional disputes have to be submitted to the House by the Council of Constitutional Inquiry
- ➡ the council of constitutional inquiry after making the necessary investigation of the case is required to submit its recommendation to the House of Federation for a final decision
- ➡ Since issues of constitutionality are to be finally decided only by the House of Federation upon the recommendation of the council, any constitutional dispute relating to administrative acts can only be decided by the House of Federation, and consequently the litigant is not expected to exhaust any administrative and regular court remedy in such cases.
- ➡ So the case must be taken to the House of Federation.

¹ Proclamation., Supra note 182, Art. 2(10).

- ➡ administrative officials and regular courts are not empowered to decide upon constitutional disputes
- ➡ so a person challenging the constitutionality of an administrative action is not required to proceed to administrative officials and regular courts.
- ➡ he can directly take his case to the House of Federation if he proves that he is an interested party
- ➡ the phrase “interested party” may have different meanings in different contexts
- ➡ here it is important to read Articles 83 and 84 in tandem with Articles 44(1) and 92 (4) of the constitution, and Art. 11 of the Environmental pollution control proclamation to address the question to whom an interested party stands for².
- ➡ When we read the above legal provisions in conjunction, they imply that every one has the right to live in a clean and healthy environment, and the duty to protect the environment.
- ➡ So, everyone is presumed to have vested interest when damage is done to the environment due to unconstitutional acts of administrative organs
- ➡ so that any alert citizen or public interest group challenging the constitutionality of environmental authority’s action in relation to the environment can directly take his case to the House of Federation without exhausting any administrative and regular court remedies.

Citizen Standing Before International Courts and Tribunals

The doctrine of exhaustion of local remedies

- ➡ is a method which gives states the first opportunity to resolve their own internal problems in accordance with their domestic legal procedures before they proceed to accept international standards
- ➡ seems to have connection with the principle of permanent sovereignty which states that every state has the right to freely dispose of the natural resources within its territory
- ➡ the doctrine of exhaustion of local remedies give cognizance to states’ sovereignty by bestowing them the first opportunity to solve their problems by themselves

² Id., Arts. 83, 84, 44 (1), 92 (2), and Supra note 182, Art. 11.

- ➡ is a principle applicable at an international level, which is closely related in its function with the doctrine of exhaustion of administrative remedies applicable at the domestic level
- ➡ provides that before an aggrieved person brings an international claim against his state, the injured citizen should have exhausted all the domestic administrative and judicial remedies available within the state that is alleged to have injured him
- ➡ so claim will not be admissible on the international plane unless the person concerned has exhausted the effective and adequate legal remedies available to him within the state which is alleged to be the author of the injurious act

CHAPTER 6 REMEDIES IN ENVIRONMENTAL PROCEEDING

- ➡ in legal litigation, remedies are broadly categorized as civil and criminal liability.
- ➡ Similarly, in Environmental Law, the legal remedies are broadly categorized as civil and criminal liability
- ➡ In regard to Environmental law, the legal remedies that are designed to maintain the status quo are provided in the Criminal Code, Tort Law, and other Enabling Statutes of Environmental Law
- ➡ The legal remedies in these different legal instruments are devised to provide a full-fledged legal remedy to keep up the natural cycle of the environment
- ➡ our legal system devised the civil and criminal liabilities with different mechanisms but the same objective,
- ➡ that is taking reactive and proactive measures in case when there is actual or potential damage to the environment
- ➡ So, in case when any state program affects the interest of any person, the interested party or any public interest group could demand adequate, prompt and effective compensation as a legal remedy
- ➡ the court of law which entertains the case would be expected to take judicial notice of the legal provisions in the enabling legislations.
- ➡ **Article 3 of Proclamation No 300/2002**, reiterates that the Authority or the relevant Regional environmental agency may take administrative or legal measures against a person who, in violation of the law, releases any pollutant to the environment.

- ➡ In Environmental Law, liability for a tort arises when a wrongful act complained of amounts either to an infringement of a legal private right or a breach or violation of a legal duty. That is, when there is public or private nuisance
- ➡ in case of public nuisance the damage to the environment could be manifested by affecting both private interests and diffused public interests
- ➡ so the private parties would enforce their rights to the extent they are specially and differently aggrieved
- ➡ And the public interest groups could enforce the remedy as to the diffused interests that could affect the interest of the public at large the interest of the future generation, and the intrinsic value of the environment.
- ➡ the environmental law has a leeway by which it could address the interest of the public, the environment, and the future generation.
- ➡ In regard to Ethiopian Environmental Law criminal liability is encompassed in the Criminal Code, and other Enabling Environmental Statutes.
- ➡ the other critical function performed by judges in fashioning remedies in environmental cases is penalizing environmental wrongdoing
- ➡ the objective in punishing violators is not so much punishment for punishment's sake. Rather, it is to express community rejection of the conduct and send a message of "deterrence" that discourages similar misconduct in the future.
- ➡ read Article 3 of the Criminal Code in tandem with Article 12(3) of Pollution Control Proclamation
- ➡ it is clear that in case when someone pollutes the environment the court which entertains the case would take judicial notice of the severe penalty on either of these legal instruments
- ➡



CHAPTER 6 REMEDIES IN ENVIRONMENTAL PROCEEDING

